

1 ENGROSSED SENATE
2 BILL NO. 1161

By: Hall and Haste of the
Senate

3 and

4 Caldwell (Trey) and Kane of
5 the House

6
7 An Act relating to the Oklahoma Health Care
8 Authority; amending Section 70 of Enrolled Senate
9 Bill No. 1177 of the 2nd Session of the 60th Oklahoma
10 Legislature, which relates to general appropriations;
11 modifying certain date; providing for duties and
12 compensation of administrators and employees;
13 authorizing payment of certain expenses; authorizing
14 certain transfers; requiring certain transfers;
15 authorizing certain early transfer requests;
16 authorizing the exemption of unanticipated federal
17 funds from expenditure and budgetary limitations;
18 providing procedures; requiring certain budget
19 procedures; prohibiting certain budget procedures;
20 providing an effective date; and declaring an
21 emergency.

22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. AMENDATORY Section 70 of Enrolled Senate Bill
24 No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, is
amended to read as follows:

There is hereby appropriated to the Oklahoma Health Care
Authority from any monies not otherwise appropriated from the Health
Care Enhancement Fund of the State Treasury for the fiscal year
ending ~~June 30, 2025~~ June 30, 2027, the sum of Ninety-nine Million
Four Hundred Ninety-four Thousand Four Hundred Fifty Dollars

1 (\$99,494,450.00) or so much thereof as may be necessary to perform
2 the duties imposed upon the Authority by law.

3 SECTION 2. A. The duties and compensation of employees, not
4 otherwise prescribed by law, necessary to perform the duties imposed
5 upon the Oklahoma Health Care Authority by law shall be set by the
6 Administrator of the Oklahoma Health Care Authority.

7 B. The Oklahoma Health Care Authority is authorized to:

8 1. Pay professional expenses of the Administrator of the
9 Authority including dues, licenses, professional memberships, and
10 continuing education classes conducted in this state; and

11 2. Pay professional expenses of any employee including dues,
12 licenses, professional memberships, continuing medical education
13 classes conducted in this state, and medical malpractice insurance
14 provided he or she is a full-time employee of the Authority in
15 accordance with subsection B of Section 5006 of Title 63 of the
16 Oklahoma Statutes and is utilizing those professional skills in the
17 performance of his or her job duties.

18 SECTION 3. A. In order to facilitate cash management of
19 federal grant receipts and disbursements, the Oklahoma Health Care
20 Authority is authorized to transfer appropriations, apportionments,
21 fees, fines, and other revenues received in any fund to Funds 200,
22 245, 340, and 425 as necessary to satisfy program expenditure
23 requirements. Such transfers shall be made at the direction of the
24 Administrator of the Oklahoma Health Care Authority and shall be

1 subject to approval of the Director of the Office of Management and
2 Enterprise Services, except that the cumulative amounts transferred
3 shall not exceed the cumulative amounts of equal monthly allotments
4 of the appropriations from the General Revenue Fund and the Health
5 Care Enhancement Fund.

6 B. Monies appropriated or collected for the fiscal year ending
7 June 30, 2027, may be transferred to these disbursing funds for the
8 fiscal year ending June 30, 2026, to satisfy encumbrances and
9 obligations of such fiscal year; provided, that monies equal in
10 amount are transferred from appropriations or collections for the
11 fiscal year ending June 30, 2026, to the disbursing fund for the
12 fiscal year ending June 30, 2027, to satisfy encumbrances and
13 obligations of such fiscal year. All transfer requests shall be in
14 writing to the Director of the Office of Management and Enterprise
15 Services.

16 C. The Oklahoma Health Care Authority shall maintain records of
17 the inter-year transfers.

18 SECTION 4. The Administrator of the Oklahoma Health Care
19 Authority may request that receipt and expenditure of unanticipated
20 federal funds awarded after July 1, 2026, be exempt from expenditure
21 limitations and from budgetary limitations.

22 SECTION 5. The Administrator of the Oklahoma Health Care
23 Authority may request, through the Director of the Office of
24 Management and Enterprise Services, the early transfer by the

1 Oklahoma Tax Commission of tax collections to the General Revenue
2 Fund for the purpose of early allocation to the agency's disbursing
3 funds to alleviate cash flow problems.

4 SECTION 6. This act shall become effective July 1, 2026.

5 SECTION 7. It being immediately necessary for the preservation
6 of the public peace, health, or safety, an emergency is hereby
7 declared to exist, by reason whereof this act shall take effect and
8 be in full force from and after its passage and approval.

9 Passed the Senate the 14th day of April, 2026.

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11 _____
12 Presiding Officer of the Senate

13 Passed the House of Representatives the ____ day of _____,
14 2026.

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16 _____
17 Presiding Officer of the House
18 of Representatives
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